



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

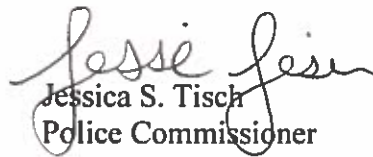
Re: PODS Case Nos. C-031524 & C-033236 regarding Sergeant Ariel Cruz, Tax No. 951644

Date: March 19, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Sergeant Cruz was discourteous to an individual; stopped an individual without sufficient legal authority; threatened to arrest the individual; issued a summons to an individual without sufficient legal authority; performed vehicle searches without sufficient legal authority; questioned individuals without sufficient legal authority; and failed to provide his business card to individuals. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Sergeant Cruz will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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May 27, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Sergeant Ariel Cruz (Tax Reg #951644, DADS #2023-29084 and PODS C-03326)

Commissioner Tisch:

A negotiated settlement of a dismissal of the charge along with a penalty of Training was agreed upon and signed by all parties on May 2, 2025. Assistant Deputy Commissioner Anne Stone stated on May 6, 2025 that she would not endorse the decision but would pass the agreement on for your decision.

On May 30th, 2023, Sgt Ariel Cruz and fellow officers conducted a car stop at Nelson Avenue and West 172nd Street in the Bronx. The stop was for illegal tints and an illegal license plate cover. While the initial stop was justified, BWC captured Sgt Cruz engaging in a number of actions that the CCRB deemed improper. BWC captured Sgt Cruz arguing with one of the occupants of the car, [REDACTED], during which Sgt Cruz twice calls the civilian a "smartass." These statements were discourteous.

While arguing with this civilian, Sgt Cruz stated to him, "When you end up at the precinct, then what. You're going to be in the precinct all night." This was a threat to arrest the civilian and was improper. While the civilian was arguing and asking why he had been pulled over, nothing he had said or done amounted to Obstruction of Governmental Administration, Disorderly Conduct or any other crime. Sgt Cruz instructed PO McCabe to write a summons to Mr. [REDACTED] for disorderly conduct. Again, Mr. [REDACTED] had one nothing that constituted disorderly conduct.

During the incident, Sgt Cruz questioned Mr. [REDACTED] over whether he had any weapons and also searched the vehicle. Sergeant Cruz did not have the reasonable suspicion that Mr. [REDACTED] possessed a weapon to question him about weapons nor the probable cause to search the vehicle for a weapon. Finally, Sgt Cruz ordered PO McCabe to stop one of the passengers in the vehicle who was walking away from the vehicle. There was no suspicion of criminality concerning this civilian and there was no basis to order her to be stopped.

For the charge of an unlawful enforcement action involving an abuse of authority, the disciplinary matrix lists a mitigated penalty of the forfeiture of ten (10) vacation days, a presumptive penalty of the forfeiture of twenty (20) vacation days, and an aggravated penalty of the forfeiture of Termination. The negotiated settlement deviates from NYPD disciplinary guidelines as to an unlawful enforcement action involving an abuse of authority for the following reasons:

The bases for this recommendation are Sergeant Cruz's thirteen years of service and the evaluation he received of 9 out of 10, well above standards, in his most recent evaluation.

Respectfully submitted,

Brian Arthur

Brian Arthur, Esq.

Deputy Chief Prosecutor

Civilian Complaint Review Board